

Before the Federal Maritime Commission, Washington, DC.

Docket No. 25-08

FormuKleen, Inc.
(Complainant)

vs.

Top Shipping Systems, Corp.
(Respondent)

**COMPLAINANT’S RESPONSE AND LIMITED OPPOSITION TO RESPONDENT’S
COUNSEL’S CONSENT MOTION TO WITHDRAW**

Complainant FormuKleen, Inc., by and through its representative, submits this Response and Limited Opposition to the Consent Motion of Spector Rubin, P.A. and Attorneys Andrew R. Spector, Esq., Robert M. Borak, Esq., and Idania K. Bond, Esq. to Withdraw as Counsel for Respondent Top Shipping Systems, Corp.

Complainant does not seek to force unwilling counsel to continue representing Respondent. However, Complainant objects to the Motion as presented because it attempts to use counsel’s withdrawal as a vehicle to delay pending motion practice, extend discovery deadlines, and avoid Respondent’s existing obligations.

I. Respondent Was Represented When Complainant’s Pending Motion Was Filed

Complainant filed its Motion to Enforce the April 1, 2026 Order as to Requests for Production Nos. 4 and 7 and for Sanctions while Respondent was represented by counsel. Respondent’s counsel received the motion. Respondent was represented when Respondent’s

failure to comply with the April 1, 2026 Order became clear, when Complainant attempted to resolve the issue without motion practice, and when Complainant filed the enforcement motion.

Respondent should not be permitted to use counsel's withdrawal to halt or delay ruling on a motion filed while Respondent was represented. If Respondent requires substitute counsel, that is an issue between Respondent and its counsel. It should not prejudice Complainant, delay the Presiding Officer's consideration of Complainant's pending motion, or excuse Respondent's compliance with the April 1, 2026 Order.

II. Paragraph 5 Improperly Attempts to Bootstrap Extension Relief Into a Withdrawal Motion

Paragraph 5 of the Motion concedes that withdrawal "can be accomplished without material adverse effect on the interests of Respondent." Complainant does not concede that withdrawal-related delay would be nonprejudicial to Complainant. To the contrary, Complainant objects because Respondent seeks to use a withdrawal that it admits will not materially harm Respondent as a basis to delay pending motion practice, extend deadlines, and postpone compliance with existing obligations.

Having admitted that withdrawal can occur without material adverse effect on Respondent, Respondent and its counsel cannot use the same motion to seek or imply a stay, extension, reset of deadlines, delay of pending motion practice, or suspension of existing obligations.

Paragraph 5 then states that Respondent should be afforded sufficient time to retain counsel, references pending discovery-related motions, states that Respondent intends to file

discovery motions and an extension of deadlines, and asserts that such an extension was “contemplated” in the April 1, 2026 Order. Complainant objects to that language.

46 C.F.R. § 502.23(d) expressly provides that “substitution of counsel or representative will not, by itself, be considered good cause for delaying a proceeding.” The April 1, 2026 Order did not grant Respondent an automatic future extension based on a later change of counsel. Nor does a withdrawal motion establish good cause for extending deadlines, delaying responses, or postponing adjudication of pending motions.

Complainant does not consent to any extension, stay, reset of discovery, delay of pending motion practice, or suspension of Respondent’s discovery obligations based on counsel’s withdrawal.

III. The Certificate of Conference Is Improper and Misrepresents the Record

The certificate of conference states that counsel “saw no reason to consult” with Complainant’s representative because Complainant allegedly refuses extensions or accommodations and has engaged in bad faith behavior, and cites “warnings from the Presiding Officer” about such conduct.

That characterization misrepresents the record. The Presiding Officer has not warned Complainant about bad faith behavior and has not found that Complainant engaged in bad faith. What the Presiding Officer actually said, in a footnote to a prior order, was that he had previously “encouraged” Complainant’s representative to agree to short and reasonable extension requests, and offered the strategic observation that it “may have been more advantageous” to

Complainant to agree to Respondent's extension request in exchange for a corresponding extension of the discovery deadline.

That is strategic advice in a footnote. It is not a warning. It is not a finding of bad faith. It is not an admonishment directed at Complainant. Respondent's counsel's characterization of that footnote as "warnings from the Presiding Officer" about bad faith behavior is a misrepresentation of the record.

The written record shows that Complainant's representative has professionally and courteously addressed discovery disputes, scheduling issues, and motion practice in writing and on the record, while Respondent's counsel has repeatedly resorted to personal attacks, inflammatory characterizations, and procedural posturing, including accusing Complainant's representative of bad faith in a certificate of conference after admittedly choosing not to confer. Complainant will promptly and emphatically provide the Commission with the full written record, should the Commission wish to review it.

Complainant also respectfully disagrees with the Presiding Officer's strategic suggestion, both then and now.¹ The record of this proceeding demonstrates that extensions have not benefited Complainant. Every extension granted to Respondent has provided additional time for Respondent to delay compliance with its discovery obligations, not to cure deficiencies. Complainant's opposition to extensions is not bad faith, it is a reasonable response to a pattern of obstruction that the Presiding Officer's own April 1, 2026 Order documented, including concerns about spoliation and facially inadequate search methodology.

¹Complainant respectfully notes that the Commission is not privy to Complainant's circumstances. Although extensions may appear mutually advantageous in the abstract, continued delays and extensions have prejudiced, and continue to prejudice, Complainant, as Complainant has repeatedly argued.

A certificate of conference is not a vehicle for attacking the opposing representative. Counsel chose not to confer and then attempted to justify that choice by inserting accusations into the certificate itself.

IV. Any Withdrawal Order Should Expressly Preserve Existing Deadlines and Pending Motion Obligations

Complainant objects to withdrawal unless any order granting withdrawal expressly provides that the withdrawal does not:

1. Extend any deadline;
2. Stay any pending motion;
3. Delay Respondent's deadline to respond to Complainant's pending Motion to Enforce the April 1, 2026 Order;
4. Excuse Respondent's discovery obligations or compliance with the April 1, 2026 Order;
5. Reset discovery or motion practice;
6. Affect Complainant's pending requests for sanctions, adverse inference, in camera review, or other relief; or
7. Otherwise prejudice Complainant.

Complainant further requests that any withdrawal, if permitted, be conditioned on Respondent's actual compliance with the April 1, 2026 Order and any order resolving Complainant's pending Motion to Enforce, including completion of any compelled production, Bates-range identification, in camera submission, unredacted production, privilege log, or other discovery compliance required by the Presiding Officer. Respondent should not be permitted to

use counsel's withdrawal to create a gap in representation, delay actual production of compelled materials, postpone in camera review, avoid Bates-range identification, or otherwise interfere with Complainant's ability to proceed on a complete record, including for purposes of renewed dispositive motion practice.

Respondent remains responsible for all filings, deadlines, and obligations unless and until the Presiding Officer orders otherwise.

V. Conclusion and Request for Relief

For the foregoing reasons, Complainant respectfully requests that the Presiding Officer deny the Consent Motion to Withdraw as presented, or, in the alternative, grant withdrawal only with an express order that withdrawal does not extend any deadline, stay any pending motion, delay Respondent's response to Complainant's Motion to Enforce, excuse Respondent's discovery obligations, or otherwise prejudice Complainant.

Complainant further requests that any withdrawal order require Respondent's full compliance with the April 1, 2026 Order and any order resolving Complainant's pending Motion to Enforce before withdrawal becomes effective, or otherwise expressly provide that withdrawal does not delay compelled production, in camera review, Bates-range identification, or Complainant's ability to proceed on a complete record.

Respectfully submitted,

Sara Dandan

Licensed to practice before the Commission and in good standing

FourOneOne LLC

2501 Chatham Rd, Suite 8082

Springfield, IL 62704

Email: sara@fouroneone.io

Phone: 630-286-9846

Signature: _____

Date: 05/13/2026

CERTIFICATE OF SERVICE

I certify that on May 13, 2026, a true and correct copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondent:

Andrew R. Spector, Esq.

Robert M. Borak, Esq.

Idania K. Bond, Esq.

Spector Rubin, P.A.

3250 Mary Street, Ste. 405

Miami, Florida 33133

idania.bond@spectorrubin.com

robert.borak@spectorrubin.com

andrew.spector@spectorrubin.com

Ricky Villena

Top Shipping Systems, Corp.

12480 NW 25th Street, Ste. 100

Miami, Florida 33182

ricky.villena@tsscorp.us

Sara Dandan

